

		Code Civ. Proc. §704.770(b). Discussion Judgment Creditor’s application was timely filed within 20 days of the Sheriff’s notice of levy to Judgment Debtors. Code Civ. Proc. §704.750(a). [Cheng Decl., Ex. 5; ROA #364.] The application is essentially under oath as it is supported by the Cheng Declaration, which, as described above sets forth information required by Code of Civil Procedure section 704.760. [See Cheng Decl., ¶¶ 3, 4, 10-12 and Exs. 1 and 3.] Accordingly, the Court will issue the requested order to show cause.
104	2023-01325570 Mom CA Investco, LLC vs. 247 Hotels Beverage, LLC	Motion to Be Relieved as Counsel or Record The motion of G&B Law, LLP, by James R. Felton, counsel of record for Cross-Defendant Cantor Group IV, LLC, for an order relieving it as counsel for Cross-Defendant is granted. [ROA #549.] Counsel is ordered to submit a revised order with the new next hearing date. Upon the signing of the order, counsel shall serve the signed order on Cross-Defendant and all parties that have appeared. Counsel will be relieved as counsel of record for Cross-Defendant effective upon the filing of the proof of service of the signed order upon Cross-Defendant and all other parties. Cross-Defendant cannot appear without counsel. A licensed attorney must represent a business entity. (<i>Paradise v. Nowlin</i> (1948) 86 Cal.App.2d 897, 898; <i>Roddis v. Strong</i> (1967) 250 Cal.App.2d 304, 311; see Bus. & Prof. Code, § 6125.) Failure to retain an attorney may lead to striking of the pleadings, among other actions. The Court sets a status conference re: Cross-Defendant’s retention of new counsel for February 8, 2027 at 10:00 a.m. in Department C27. If Cross-Defendant does not appear through counsel at the next hearing, the Court will issue an OSC re: obtaining counsel or striking of answer. Counsel for Cross-Defendant is ordered to give notice.
105	2025-01477589 Bian vs. Ford Motor Company	Motion for Judgment on the Pleadings Defendant Ford Motor Company’s motion for judgment on the pleadings is granted in part and denied in part. The motion is granted with 15 days leave to amend as to the first and second causes of action in Plaintiff Kuo Bian’s complaint; it is denied as to the third cause of action. Moving party is ordered to give notice.
107	2025-01515687 Horner vs. Kia America, Inc.	Motion – Other The motion by Defendant Kia America, Inc. (“Defendant”) for an order maintaining the confidential designation applied to documents produced in Defendant’s initial disclosures pursuant to CCP section 2031.060, subdivision (b) and the protective order between the parties is granted in part and denied in part.

Defendant produced documents pursuant to CCP section 871.26, subdivision (h) and designated some of the responsive documents as confidential pursuant to the parties stipulated protective order. Plaintiff Jeffrey Horner ("Plaintiff") objected to the confidential designation of some of the documents. Pursuant to the parties' protective order, Defendant seeks an order maintaining Defendant's confidential designation pursuant to CCP section 2031.060, subdivision (b) of the following category of documents: motor vehicle information report/specifications; warranty transaction history; Kia connect case reports and customer care case reports; service policies and procedures; and warranty extensions or modifications.

Plaintiff's objections to Doudar's declaration are overruled.

Plaintiff's objections to Mendoza's declaration are overruled.

Defendant's objection number 1 to Sanchez's declaration is sustained. Defendant's remaining objections to Sanchez's declaration are overruled.

"The court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions:

- (1) That all or some of the items or categories of items in the demand need not be produced or made available at all.
 - (2) That the time specified in Section 2031.260 to respond to the set of demands, or to a particular item or category in the set, be extended.
 - (3) That the place of production be other than that specified in the demand.
 - (4) That the inspection, copying, testing, or sampling be made only on specified terms and conditions.
 - (5) That a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way.
 - (6) That the items produced be sealed and thereafter opened only on order of the court."
- (Code Civ. Proc., § 2031.060, subd. (b).)

"If the motion for a protective order is denied in whole or in part, the court may order that the party to whom the demand was directed provide or permit the discovery against which protection was sought on terms and conditions that are just. (Code Civ. Proc., § 2031.060, subd. (g).)

"The burden is on the party seeking the protective order to show good cause" for the order sought. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255, citing *Goodman v. Citizens Life and Casualty Insurance Company* (1967) 253 Cal.App.2d 807, 819.) To establish good cause, the moving party must provide "a factual exposition of a reasonable ground for the sought order." (*Goodman v. Citizens Life and Casualty Insurance Company*, 253 Cal.App.2d at 819.)

In determining whether to issue a protective order, the Court "may fashion an order in light of the equities of the case and the interests of justice." (*Brigante v. Huang* (1993) 20 Cal.App.4th 1569, 1588 [disapproved of on other grounds by *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973].)

		Defendant showed good cause to maintain the confidentiality of the following category of documents: motor vehicle information report/specifications; service policies and procedures; and warranty extensions or modifications. (Mendoza Decl., ¶¶ 6, 8, and 10.) Plaintiff did not show Defendant waived its right to maintain the confidential designation of these documents. Defendant's motion to maintain the confidentiality of the documents produced reflecting the motor vehicle information report/specifications (KA/HORNER000938), service policies and procedures (KA/HORNER000753-KA/HORNER000928), and warranty extensions or modifications is granted. Defendant did not show good cause to maintain the confidential designation of the warranty transaction history documents and Defendant's connect case reports and customer case reports produced in response to CCP 871.26, subdivision (h). Defendant's motion to maintain the confidentiality of these documents is denied. The Court notes Defendant described the documents produced in relation to warranty extensions or modifications as KA/HORNER000934-9370, which would include the documents described as produced in response to warranty transaction history, KA/HORNER000939-KA/HORNER000959. Defendant should be prepared to discuss whether the warranty extensions or modifications includes KA/HORNER000934-KA/HORNER0009370 or KA/HORNER000934-KA/HORNER000937. Defendant shall give notice.
108	2025-01488153 Ashouri vs. Khosravi Mortgage	1. Motion to Strike Portions of Complaint 2. Case Management Conference Defendants Khosravi Mortgage's, Farhad Khosravi's, and Fariba Partovi Yazdi's motion to strike portions of Plaintiff Mahmood Ashouri's Second Amended Complaint is granted with 15 days leave to amend. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. Code Civ. Proc. § 436. "Irrelevant" matters include: allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc. § 431.10(b).) A motion to strike can also strike legal conclusions. (<i>Weil & Brown</i>, Cal. Prac. Guide, <i>Civil Proc. before Trial</i>, ¶ 7:179 (2010).) Conclusory allegations are permitted, however, if they are supported by other factual allegations in the complaint. (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App. 3d 1, 6.) The same liberal policy regarding amendments that applies to the sustaining of demurrers applies for motions to strike. If a defect may be correctible, leave to amend should usually be given. (<i>Velez v. Smith</i> (2006) 142 Cal.App.4th 1154, 1174.) Defendants move to strike Plaintiff's claim for punitive damages stated in the Prayer for Relief. Civil Code § 3294 provides that punitive damages may be awarded in an action for breach of an obligation not arising from contract, if the plaintiff proves by clear and convincing